

Smt. Neha Parashar Wife Of Nitish Sharma vs Nitish Sharma S/O Shri Shesh Narayan ... on 29 January, 2021

Author: Goverdhan Bardhar

Bench: Goverdhan Bardhar

HIGH COURT OF JUDICATURE FOR RAJASTHAN
BENCH AT JAIPUR

S.B. Civil Transfer Application No. 72/2020

Smt. Neha Parashar Wife of Nitish Sharma, Resident Of
Saraswati Colony, Roteda Road, Gali No 13, Plot No. 209, Kota
Junction, Kota (Rajasthan)

----Petitioner/Non-Applicant

Versus

Nitish Sharma S/o Shri Shesh Narayan Sharma, R/o Keshavrai
Patan, Tehsil Keshavrai Patan, District Bundi (Rajasthan)

----Respondent/Applicant

For Petitioner(s) : Mr. Aastish Jain

HON'BLE MR. JUSTICE GOVERDHAN BARDHAR

Order

29/01/2021

This transfer application has been filed by petitioner-non- applicant- wife-Smt. Neha Parashar (for short "petitioner") against the respondent-applicant- husband Nitish Sharma (for short "respondent") under Section 24 of the Code of Civil Procedure, 1908 for seeking transfer of Matrimonial Case No. 368/2019 (Nitish Sharma Vs. Neha Parashar) pending before the Judge, Family Court, Bundi to Judge, Family Court, Kota (Rajasthan).

Counsel for the petitioner submits that petitioner is residing at Kota with her old mother. Counsel further submits that petitioner lodged an FIR against the respondent for the offence under Sections 498-A and 406 IPC which is pending at Police Station, Mahila Thana, Kota. Counsel further submits that respondent has also filed an application under Section 9 of the Hindu Marriage Act for restitution of conjugal right before the (2 of 2) [CTA-72/2020] Judge, Family Court, Bundi (Rajasthan) just only to pressurize and harass the petitioner. There are false allegations made there-under, hence, petitioner wants to contest this petition.

Despite service, no-one has put in appearance on behalf of the respondent.

Taking note of the facts and circumstances of the case and also in the interest of justice, the aforesaid petition filed under Section 9 of the Hindu Marriage Act pending before the Judge, Family Court, Bundi (Rajasthan) is hereby transferred to the Judge, Family Court Kota (Rajasthan).

The Transfer Application is allowed and the Judge, Family Court, Kota (Rajasthan) is directed to decide the aforesaid petition expeditiously preferably within a period of six months from the date of receipt of certified copy of this order.

Parties are directed to appear before the Judge, Family Court, Kota on 25.02.2021.

(GOVERDHAN BARDHAR),J Ashu/19 Powered by TCPDF (www.tcpdf.org)